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<tr><td></td><td></td><td>full or within 30 days thereafter.

(b) The order determining liability for contribution or repayment entitles the judgment debtor to the benefit of the judgment to enforce the liability, including every remedy that the judgment creditor has against the persons liable, to the extent of the liability.

(c) Nothing in this section limits any other remedy that a judgment debtor entitled to contribution or repayment may have.

Here, Travelers posted a surety bond in the amount of $80,000.00 on behalf of Administrator (Bond No. 107415518). On 2/7/24, the court issued a Judgment for Surcharge against Administrator in the amount of $159,297.11. (ROA 109.) On 11/5/25, Travelers sent a check for $80,000.00 to Successor Administrator Lawrence Anthony Hempen, PPF.

The moving papers do not state that the check cleared, and no receipt has been filed. This motion is unopposed despite proof of service to Administrator and Successor Administrator. The court is inclined to issue the following orders upon assurance that the check from Travelers in the amount of $80,000.00 has cleared.

1. Judgment is entered in favor of Travelers and against Maximillian Schwarz in the sum of $80,000;

2. The Surcharge Judgment against Maximillian Schwarz is satisfied in the amount of $80,000; and

3. Travelers probate bond numbered 107415518 is hereby cancelled and exonerated, with prejudice.

Travelers shall prepare, file, and serve a Proposed Judgment.
[Motion Type]</td></tr>
<tr><td>01426688</td><td>Sanburg – Trust</td><td>TENTATIVE RULING
Case: Sanburg – Trust 01426688

Calendar No: 6
Date: 08/05/26

MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA 202)</td></tr>
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		On 12/1/25, Petitioner Paula Sanburg Ruby ("Petitioner") filed the instant motion to compel Respondent Phil Keribs ("Respondent") to respond to a request for production of documents. (ROA 202.) In opposition to this motion, Respondent argues that he was not a party to the action at the time the discovery was propounded. (ROA 288.) The discovery was propounded in October 2025. Respondent became a party to this proceeding upon the filing of the Third Amended Petition on 6/18/26. (ROA 262.) The prior petitions only named Mary Kerbis as a Respondent. (ROAs 2, 12, and 37.) A demand for production of documents pursuant to Code of Civil Procedure section 2031.010 may only be propounded on a party to the litigation. It is clear that Petitioner understood that Respondent was not yet a party, as she had filed a motion for leave to file the Third Amended Petition to add Respondent as a party. (ROA 158.) In Reply, Petitioner argues that the court should evaluate this motion in light of the "full procedural history." Petitioner argues that the court can resolve the discovery dispute on the merits because she was in the process of having Respondent added as a party at the time the discovery was propounded and Respondent has since been added as a party. Such argument is erroneous. Respondent was not added as a party to the action until several months after the discovery responses would have been due. Thus, Respondent had no obligation to respond to the discovery. The court cannot retroactively impose discovery obligations on a person who later becomes a party. Petitioner also argues in reply that her only objective was to obtain trust-related information from Respondent as a co-trustee. It is true that a beneficiary may request information about a trust from a trustee. (Prob. Code § 16061.) If the trustee fails to provide the information, the beneficiary may file a petition pursuant to Probate Code section 17200 for an order requiring the information to be provided. However, Petitioner did not simply request information from Respondent pursuant to Probate Code section 16061. As clearly reflected in the accompanying cover letter, Petitioner propounded a formal document demand pursuant to Code of Civil Procedure section 2031.010 (ROA 202, Ex. D), and she filed the instant motion to compel pursuant to Code of Civil Procedure section 2031.300 - all before Respondent was made a party to the action. Finally, Petitioner argues that sanctions are not warranted

		because this is merely a procedural dispute, and she has not acted in bad faith. The court does not find such arguments persuasive. "Using a discovery method in a manner that does not comply with its specified procedures" is a misuse of the discovery process warranting sanctions. (Code Civ. Proc. § 2023.010(b).) Moreover, there is no "good faith exception" to the sanctions required by Code of Civil Procedure section 2031.300(c). The court finds that the motion was made without substantial justification (i.e., without basis in law or fact) and finds no other circumstances that would make the imposition of sanctions unjust. Based on the foregoing, the motion to compel is **DENIED**. The court imposes sanctions against Petitioner in the amount of **$2,452.50** for the attorney's fees incurred by Respondent in opposing this motion. Petitioner shall pay said amount to Law Stein Anderson, LLP within 30 days of notice of this ruling, extended for method of service, or by any further date as agreed upon by the parties in writing. Counsel for Respondent is ordered to file and serve a Notice of Ruling.
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